

**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF THE BRONX**

**TAHJE KNIGHT; JOSIAH  
SHAKESPEARE; TYREK WILLIAMS;  
MADELYN MELENDEZ; ABRIEONAH  
LEDBETTER; KAREN KNIGHT, on behalf  
of her minor child T.M.; and CARLENE  
FOLKS, on behalf of her minor child A.L.,**

Plaintiffs,

-against-

**THE CITY OF NEW YORK; JOHN/JANE  
DOE NOS. 1-10,**

Defendants.

Index No.:

**SUMMONS**

Plaintiff designates Bronx County  
as the place of trial

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is the location where the claims arose.

Dated: New York, New York  
February 11, 2022

**Rickner PLLC**

By:



Rob Rickner

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New York, New York 10279  
Phone: (212) 300-6506

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*Attorney for Plaintiffs*

TO:

THE CITY OF NEW YORK  
New York City law Department  
100 Church Street  
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK  
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of her minor child **T.M.**; and **CARLENE  
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**VERIFIED COMPLAINT**

Plaintiffs, by their attorneys, Rickner PLLC, complaining of the Defendants, allege upon information, belief, and personal knowledge:

**NATURE OF THE CASE**

1. This is a civil rights action brought against the City of New York and members of the New York City Police Department (“NYPD”), who violated Plaintiffs’ rights under the Constitution of the United States and the Constitution of the State of New York, and committed torts actionable under the common laws and statutes of the State and New York.

**JURISDICTION**

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of Plaintiffs’ rights under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, Plaintiffs’ rights under Article 1, Section 12 of the Constitution of the State of

New York, and the common laws of the State and New York.

3. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

4. Pursuant to New York State General Municipal Law § 50-e, Plaintiff Tahje Knight filed a timely Notice of Claim with the New York City Comptroller and the Comptroller designated the claim as number 2021PI003957.

5. Plaintiff T. Knight appeared for a hearing under New York State General Municipal Law § 50-h on November 19, 2021.

6. T. Knight's claims were not adjusted by the New York City Comptroller's Office within the period of time provided by statute.

7. Plaintiff T.M., represented through his mother Karen Knight, also timely filed a Notice of Claim with the New York City Comptroller and the Comptroller designated the claim as number as 202100079430.

8. Plaintiff T.M. has been incarcerated and therefore unavailable to complete a hearing pursuant New York State General Municipal Law § 50-h. A stipulation of unavailability has been signed and the § 50-h hearing has been adjourned indefinitely until such time that T.M. can be made available. Per the stipulation, any discovery in his case will be limited to the federal claims, which do not require a § 50-h hearing as a condition precedent.

9. Venue is properly laid in the Supreme Court of the State of New York, County of the Bronx, because the Plaintiffs' claims arose in the County of the Bronx.

10. Plaintiffs have been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

### **PARTIES**

11. Plaintiff TAHJE KNIGHT ("T. Knight") is, and was at all times relevant to this

action, a resident of Bronx County in the State of New York.

12. Plaintiff JOSIAH SHAKESPEARE (“Shakespeare”) is, and was at all times relevant to this action, a resident of Bronx County in the State of New York.

13. Plaintiff TYREK WILLIAMS (“Williams”) is, and was at all times relevant to this action, a resident of Bronx County in the State of New York.

14. Plaintiff MADELYN MELENDEZ (“Melendez”) is, and was at all times relevant to this action, a resident of Bronx County in the State of New York.

15. Plaintiff ABRIEONAH LEDBETTER (“Ledbetter”) is, and was at all times relevant to this action, a resident of Bronx County in the State of New York.

16. Plaintiff KAREN KNIGHT, on behalf of her minor child, T.M., is, and was at all times relevant to this action, a resident of Bronx County in the State of New York.

17. Plaintiff CARLENE FOLKS, on behalf of her minor child, A.L., is, and was at all times relevant to this action, a resident of Bronx County in the State of New York.

18. Defendant the CITY OF NEW YORK (“City”) is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department that acts as its agent in the area of law enforcement and for which it is ultimately responsible.

19. Defendant the City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

20. Defendant officer JOHN/JANE DOE Nos. 1–10 were at all relevant times described herein NYPD officers, employed by the City of New York. At all relevant times the officers were acting under color of New York state law, and acting in the course and scope of the duties

attendant to that employment. John/Jane Doe Nos. 1–10 are sued in their individual capacities.

21. The true names and shield numbers of the Doe Defendants Defendant are not currently known to the Plaintiffs. However, they are employees or agents of the NYPD. Accordingly, they are entitled to representation in this action by the New York City Law Department upon their request, pursuant to New York State General Municipal Law§ 50-k. The Law Department, then, is hereby put on notice (a) that Plaintiffs intend to name said officers as defendants in an amended pleading once the true names and shield numbers are known; and (b) that the Law Department should immediately begin preparing the Does' defenses in this action.

22. Collectively, the individual officer defendants, Does 1–10, are referred to as the “Individual Defendants.”

23. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of NYPD and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

24. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

### **THE VIOLATION OF PLAINTIFFS' CIVIL RIGHTS**

25. On November 14, 2020, Plaintiffs were gathered for a memorial vigil in front of the St. Mary's Houses at 665 Westchester Avenue in the Bronx to commemorate the birthday of a

loved one who passed away. Plaintiffs are the friends and family members of the deceased.

26. Plaintiffs held such a memorial twice a year, once on the deceased's birthday, and again on the day that he died.

27. This event was known to the Individual Defendants, who policed the area frequently from PSA 7, and were familiar with Plaintiffs.

28. Plaintiffs were not engaged in any illegal activities during the vigil, nor had they received any type of noise or other complaint during the few hours they were gathered.

29. Instead, Plaintiffs, at least three of whom were minors at the time, were talking, listening to music, remembering their loved one, and lighting candles in his honor.

30. Without warning or cause, a marked police car pulled up and three of the Doe Defendants jumped from the vehicle.

31. Completely unprovoked, the officers ran over and punched Plaintiff Shakespeare, who was a minor at the time, directly in the face, and proceeded to viciously assault him.

32. As the initial attack occurred, multiple additional officers arrived, and the Individual Defendants began assaulting Plaintiffs without cause or justification.

33. Plaintiffs were then detained and arrested by the Individual Defendants without probable cause and transported to PSA 7.

34. The Individual Defendants refused to provide Plaintiffs with medical treatment and would not allow them to make phone calls.

35. Plaintiffs were wrongfully searched, booked, photographed, fingerprinted, and otherwise subjected to unlawful detention for approximately six to seven hours before they were released with desk appearance tickets for disorderly conduct and/or other petty offenses.

36. The Individual Defendants failed to follow the proper procedures for processing the

minor plaintiffs, Shakespeare, T.M., and A.L., and failed to timely contact their guardians.

37. All charges were dismissed in Plaintiffs' favor prior to appearing in court.

38. However, some of the Plaintiffs suffered parole consequences as a result of this unlawful arrest, further exacerbating their injuries.

39. Since this incident, the Individual Defendants have continued to harass and target the Plaintiffs in unlawful searches and seizures without cause or justification.

### **THE INJURIES TO PLAINTIFFS**

40. This action seeks damages on behalf of Plaintiffs for the extraordinary emotional pain and suffering, loss of liberty, and physical injuries that Plaintiffs were forced to endure as a consequence of the Individual Defendants' decidedly wrongful actions.

41. The Individual Defendants' actions were wanton, reckless, and malicious, as well as in blatant disregard of Plaintiffs' civil rights, and as such the Individual Defendants are liable for punitive damages, as is the City of New York under the doctrine of *respondeat superior*.

42. All of the causes of action pleaded herein fall within one or more of the exceptions set forth by Civil Practice Law & Rules 1602 with respect to joint and several liability.

### **FIRST CLAIM FOR RELIEF: EXCESSIVE FORCE UNDER 42 U.S.C. § 1983 AGAINST THE INDIVIDUAL DEFENDANTS** *By All Plaintiffs*

43. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

44. The Individual Defendants used physical force against Plaintiffs.

45. Plaintiffs' seizures and detention at the hands of the Individual Defendants was made in the absence of probable cause. The unwanted physical contact was therefore unlawful and

unconstitutional.

46. Even assuming arguendo that Plaintiffs' arrests were lawful, the Individual Defendants engaged in the use of force that was excessive, malicious, gratuitous, and with the intention of inflicting physical and emotional harm to Plaintiffs.

47. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiffs were deprived of their civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free from unreasonable or unlawful searches and seizures, and the Individual Defendants are liable to Plaintiffs for damages under 42 U.S.C. § 1983.

48. As a result of the above unconstitutional conduct, Plaintiffs were caused to suffer physical, economic, and emotional injuries.

49. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**SECOND CLAIM FOR RELIEF:  
FALSE ARREST UNDER 42 U.S.C. § 1983  
AGAINST THE INDIVIDUAL DEFENDANTS  
*By All Plaintiffs***

50. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

51. The Individual Defendants restrained and arrested Plaintiffs without probable cause.

52. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiffs were deprived of civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free from unreasonable or unlawful searches and seizures, and the Individual Defendants are liable to Plaintiffs for damages under 42 U.S.C. § 1983.

53. As a result of the above unconstitutional conduct, Plaintiffs were caused to suffer physical, economic, and emotional injuries.

54. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**THIRD CLAIM FOR RELIEF:**  
***MONELL* LIABILITY UNDER 42 U.S.C. § 1983**  
**AGAINST THE CITY OF NEW YORK**  
*By All Plaintiffs*

55. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

56. The City of New York is liable for the conduct of the Individual Defendants under *Monell v. Department of Soc. Svcs.*, 436 U.S. 658 (1978), because the driving force behind the aforementioned constitutional violations were the de facto and explicit policies and practices of the NYPD and the City of New York.

57. Specifically, the NYPD has a pervasive and longstanding practice of employing unnecessary and excessive force, unprovoked, and in situations where there is absolutely no threat to the officers, as was the case here.

58. Moreover, the City of New York consistently fails to adequately train, supervise, and discipline its NYPD officers over such uses of force, resulting in repeated violations, often against young people of color, who are presumed to be a threat simply because of their race, socioeconomic status, and/or the area in which they live.

59. As a result, the City of New York is liable for any damages caused to Plaintiffs through these unconstitutional practices, except for punitive damages.

**FOURTH CLAIM FOR RELIEF:**  
**N.Y.C. ADMIN. CODE §§ 8-801 TO 8-807 AGAINST THE INDIVIDUAL DEFENDANTS**  
**AND THE CITY OF NEW YORK**  
*By All Plaintiffs*

60. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the

above paragraphs with the same force and effect as if fully set forth herein.

61. Plaintiffs' right to be free from unreasonable searches and seizures was violated by the conduct of the Individual Defendants.

62. The City of New York is liable as the employer of the Individual Defendants under New York City Administrative Code § 8-803(b).

63. Qualified immunity is no defense to this claim.

64. As a result of the above unconstitutional conduct, Plaintiffs were caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

65. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**FIFTH CLAIM FOR RELIEF:**  
**VIOLATION OF ARTICLE I, § 12 OF THE NEW YORK STATE CONSTITUTION**  
**AGAINST THE INDIVIDUAL DEFENDANTS**  
**AND THE CITY OF NEW YORK**  
*By All Plaintiffs*

66. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

67. Such conduct breached the protections guaranteed to Plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- a. freedom from unreasonable search and seizure of her person and property;
- b. freedom from arrest without probable cause;
- c. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- d. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual

defendants; and

e. freedom from deprivation of liberty without due process of law.

68. As a direct and proximate result of Defendants' deprivations of Plaintiffs' rights, privileges, and immunities guaranteed by the New York State Constitution, .

69. As a result of the above tortious conduct, Plaintiffs were caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

70. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

71. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**SIXTH CLAIM FOR RELIEF:  
ASSAULT AGAINST THE INDIVIDUAL DEFENDANTS  
AND THE CITY OF NEW YORK  
By Plaintiff T. Knight and Plaintiff K. Knight, on behalf of T.M.**

72. Plaintiff Knight repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

73. The Individual Defendants intentionally, willfully and maliciously assaulted Knight in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, and that such acts caused apprehension of such contact in the Plaintiff.

74. As a result of the above tortious conduct, Knight was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

75. As a result of the above tortious conduct, the Individual Defendants are liable for punitive damages.

76. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**SEVENTH CLAIM FOR RELIEF:  
BATTERY AGAINST THE INDIVIDUAL DEFENDANTS  
AND THE CITY OF NEW YORK**

*By Plaintiff T. Knight and Plaintiff K. Knight, on behalf of T.M.*

77. Plaintiff Knight repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

78. The Individual Defendants intentionally, willfully and maliciously battered Knight, when they, in a hostile and/or offensive manner struck him and handcuffed him without his consent and with the intention of causing harmful and/or offensive bodily contact to him, and caused such a battery.

79. As a result of the above tortious conduct, Knight was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

80. As a result of the above tortious conduct, the Individual Defendants are liable for punitive damages.

81. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**EIGHTH CLAIM FOR RELIEF:  
FALSE ARREST AND FALSE IMPRISONMENT AGAINST  
THE INDIVIDUAL DEFENDANTS AND THE CITY OF NEW YORK**

*By Plaintiff T. Knight and Plaintiff K. Knight, on behalf of T.M.*

82. Plaintiff Knight repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

83. Knight was arrested, handcuffed, and detained in the absence of probable cause by

the Individual Defendants.

84. That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.

85. Knight was conscious of the confinement and did not consent to such confinement.

86. Knight's arrest is *void ab initio* because he was taken to a precinct or otherwise taken into custody, rather than being given a summons or other process without such detainment, in violation of New York Criminal Procedure Law § 150.20.

87. As a result of the above tortious conduct, Knight was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

88. As a result of the above tortious conduct, the Individual Defendants are liable for punitive damages.

89. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**NINTH CLAIM FOR RELIEF:  
NEGLIGENT HIRING, SCREENING, RETENTION, SUPERVISION AND TRAINING  
AGAINST THE CITY OF NEW YORK**

*By Plaintiff T. Knight and Plaintiff K. Knight, on behalf of T.M.*

90. Plaintiff Knight repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

91. The City of New York negligently hired, screened, retained, supervised, and trained the Individual Defendants. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff's rights under the Constitution of the United States and the Constitution of the State of New York, and committed torts actionable under the common laws and statutes of the State and New York.

92. As a result of the above tortious conduct, Knight was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

93. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

94. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**TENTH CLAIM FOR RELIEF:**  
**INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**  
**AGAINST THE INDIVIDUAL DEFENDANTS AND THE CITY OF NEW YORK**  
*By Plaintiff T. Knight and Plaintiff K. Knight, on behalf of T.M.*

95. Plaintiff Knight repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

96. The Individual Defendants engaged in extreme and outrageous conduct, which intentionally and/or negligently caused severe emotional distress to Knight.

97. As a result of the above tortious conduct, Knight was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

98. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

99. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**WHEREFORE**, Plaintiffs demand the following relief jointly and severally against all of the Individual Defendants, as well as the City of New York:

- a. Compensatory damages;
- b. Punitive damages;

- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York  
February 11, 2022

**Rickner PLLC**

By:



Rob Rickner

14 Wall Street, Suite 1603  
New York, New York 10005  
Phone: (212) 300-6506  
Fax: (888) 390-5401  
*Attorney for Plaintiffs*

## ATTORNEY'S VERIFICATION

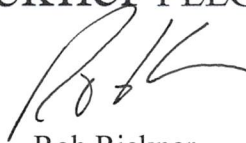
I, Rob Rickner, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

- 1) I am the attorney of record for the Plaintiffs.
- 2) I have read the annexed Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.
- 3) This verification is made by me because Plaintiffs do not reside in the County where I maintain my offices.

Dated: New York, New York  
February 11, 2022

Rickner PLLC

By:



Rob Rickner

14 Wall Street, Suite 1603  
New York, New York 10005  
Phone: (212) 300-6506  
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*Attorney for Plaintiffs*